

RESPONDENT'S MOTION TO DISMISS AND ANSWER TO VERIFIED COMPLAINT

BEFORE THE FEDERAL MARITIME COMMISSION

DOCKET NO. 25-11

PHILLIP MARCIANO LLC,

Complainant,

v.

US CARGO SERVICES INC.,

Respondent

I. PRELIMINARY STATEMENT

1. Respondent US Cargo Services Inc. is a licensed NVOCC (Non-Vessel-Operating Common Carrier) under FMC regulations, but in the shipment at issue—Bill of Lading No. MCLNYC250031A—Respondent acted solely as a delivery agent at destination, not as carrier or issuer. (Exhibit 1 RX 3)
2. The House Bill of Lading was issued by Maple Consolidation in Bangladesh, not US Cargo Services Inc. Respondent neither issued nor had control over the House Bill of Lading or cargo title.
3. The "To Order" field is blank on the Bill of Lading, meaning the cargo remains under shipper control until released. The respondent had no authority to release cargo without express instruction from the controlling shipper or its nominated agent.

II. ANSWER TO THE VERIFIED COMPLAINT

Respondent denies the allegations in the Verified Complaint unless expressly admitted herein:

- Paragraphs 1–2: Admit basic identity and location of Respondent and Complainant.
- Paragraphs 3–8: Deny that Respondent is liable under the Shipping Act for the delivery obligations claimed.
- Paragraphs 9–21: Deny knowledge or control over delivery instructions withheld by Complainant's agent or overseas consolidator.
- Paragraphs 22–34: Deny that Respondent withheld cargo in bad faith; Respondent was not in possession of any signed release or delivery order from the cargo's legal owner so deny liability for any alleged "hostage" scenario or extortion. Respondent complied with normal agent duties per FMC practice. Complainant's alleged losses are speculative and arise from their own internal failure to secure release from the controlling party.

III. MOTION TO DISMISS UNDER 46 CFR § 502.70

4. Complainant fails to allege any specific conduct by US Cargo Services that constitutes an unreasonable practice under 46 U.S.C. § 41102(c) or (d).
5. The respondent had no contractual or commercial relationship with the Complainant. The respondents' dealings were with Deal Zone NY (Tausif Hassan), who provided a signed letter acknowledging responsibility for the shipment and confirming the container was in their custody. (Exhibit 1 RX 4)

6. Complainant's agent D&T Apparels, through Tausif Hassan, directed all delivery matters. If any delay or withholding occurred, it was in the direction of the controlling party or their nominated agent. Respondent cannot be held liable for refusing release without proper delivery instructions or proof of ownership.

7. The allegations in the Verified Complaint amount to a commercial dispute between Complainant and its broker/agent (D&T Apparels), not a regulatory violation by Respondent.

IV. RESPONDENT'S LACK OF INVOLVEMENT IN CERTAIN BILLS OF LADING

8. Complainant references three Bills of Lading in its Verified Complaint:

- MCLNYC250031A (Exhibit 1 RX 3)
- OSSPL/US/24-25/1949 (Exhibit 1 RX 1)
- COSU6408922450 (Exhibit 1 RX 2)

9. Of these, only Bill of Lading MCLNYC250031A lists US Cargo Services Inc. in any capacity, and only as a delivery agent at destination, not the carrier or issuer.

10. The remaining two Bills of Lading — OSSPL/US/24-25/1949 and COSU6408922450 were not issued by Respondent. Instead, OSSPL/US/24-25/1949 was issued by OAK Shipping Services, represented by Union Logistics Inc.

- COSU6408922450 is a House B/L issued by Union Logistics Inc, again handled by a separate NVOCC or freight forwarder unrelated to Respondent.

11. US Cargo Services Inc. is not listed as a carrier, agent, consignee, or notify party on these two bills of lading and had no contractual or operational role in the shipment, clearance, or delivery of the cargo described therein.

12. Accordingly, Respondent cannot be held liable for conduct or delivery failures related to shipments for which it was not a party or had no privity of contract.

13. The inclusion of these two bills of lading in the Complaint is misleading and appears to have been done in bad faith to create the false appearance of Respondent's broader involvement.

V. REQUEST FOR RELIEF

Respondent respectfully requests the following relief:

1. That the Complaint be dismissed in its entirety under 46 CFR § 502.70 for failure to state a Shipping Act violation;
2. That the Commission deny any award of reparations under 46 U.S.C. § 41305;
3. That the Commission award Respondent costs and expenses, including any related fees, due to the filing of a frivolous and misdirected claim in bad faith under Rule 11(b);
4. That such other relief be granted as the Commission deems just and proper.

VI. CERTIFICATE OF SERVICE

I certify that a copy of this Motion to Dismiss and Answer was served on the Complainant's counsel, Jason Rebhun, Esq., by email at jason@jasonrebhun.com on this date.

Dated: July 19, 2025

Richmond, Texas

Respectfully submitted,

US CARGO SERVICES INC.

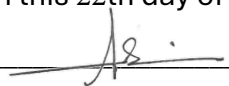
By: Syed A Zaidi

President

VERIFICATION

I, Syed A. Zaidi, declare under penalty of perjury under the laws of the United States of America that I am the authorized representative of Respondent US Cargo Services Inc., that I have read the foregoing Motion to Dismiss and Answer to Verified Complaint and know the contents thereof, and that the same are true and correct to the best of my knowledge, information, and belief.

Executed on this 22th day of July, 2025, at Richmond, Texas.

Signature: _____

Name: Syed A. Zaidi

Phone: +1832-670-1811

Email: ali@us-cs.us

Title: President

Respondent: US Cargo Services Inc.